



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Martinez v Gonzales, 2025 ONLTB 96676

Date: 2025-12-18

File Number: LTB-L-072848-24

In the matter of: 8 FLORENCE CRES
YORK ON M6N4E4

Between: Constantino Martinez Landlord

And

Marcela Gonzales Tenant

Constantino Martinez (the 'Landlord') applied for an order to terminate the tenancy and evict Marcela Gonzales (the 'Tenant') because:

- the Landlord in good faith requires possession of the rental unit for the purpose of residential occupation for at least one year.

This application was heard by videoconference on December 12, 2025.

The Landlord and the Tenant attended the hearing. Tino Martinez appeared as witness for the Landlord.

Determinations:

1. As explained below, the Landlord has proven on a balance of probabilities the grounds for termination of the tenancy.
2. The Tenant was in possession of the rental unit on the date the application was filed and remained in possession of the unit as of the hearing date.

3. On July 13, 2024, the Landlord gave the Tenant an N12 notice of termination with the termination date of April 30, 2025. The Landlord claims that they require vacant possession of the rental unit for their child's own personal use.
4. The Landlord has compensated the Tenant an amount equal to one month's rent by April 30, 2025. The parties agreed that this amount was paid on January 23, 2025.

Evidence:

5. Tino Martinez provided oral testimony at the hearing and appeared as witness for the Landlord. Mr. Martinez is the son of the Landlord and testified that he requires possession of the rental unit to be closer to his employment and to start living independently. Mr. Martinez stated that he intends to live in the rental unit for several years.
6. Mr. Martinez currently resides with his parents in St. Catherines, ON and has been employed with the Ministry of Labour, Immigration, Training and Skills Development (MLITSD) as an Ergonomic Consultant since June 3, 2024.
7. Mr. Martinez's office is located in Mississauga, ON. Currently Mr. Martinez commutes approximately 92.4 kilometers (1 hour, 10 minutes) one-way from his parents residence in St. Catherines. The commute to his employment from the rental unit would only be 27.9 kilometers (26 minutes) one-way.
8. The Landlord acknowledged at the hearing that the Tenant has resided in the rental unit long term and has been a "good tenant" but reiterated that the N12 was served in goodfaith to help out his child.
9. The Tenant at the hearing did not dispute or challenge the testimony of the Landlord's child or their intentions to move into the rental unit, but stated that prior to the hearing date, the Landlord offered her to remain in the rental unit if she agreed to increase the rent by approximately \$400.00 per month.
10. The Tenant also stated that previously in 2021, that the Landlord advised her that his daughter required the rental unit for her own use and that no N12 proceedings commenced because she agreed to pay a above guideline increase in rent.
11. The Landlord did not dispute the discussions had in 2021 and stated that his daughter was initially looking to start a business in Toronto, but subsequently decided to remain in St. Catherines. The Landlord did dispute that he approached the Tenant about a rent increase prior to this scheduled hearing date and stated that the Tenant was the one who offered to pay an increase in rent to remain in the rental unit which was declined.

Findings & Analysis:

12. The Landlord's notice of termination was served pursuant to section 48(1) of the *Residential Tenancies Act, 2006* (the Act), which states in part:

48 (1) A landlord may, by notice, terminate a tenancy if the landlord in good faith requires possession of the rental unit for the purpose of residential occupation for a period of at least one year by,

(c) a child or parent of the landlord or the landlord's spouse

13. In *Feeney v. Noble, 1994 CanLII 10538 (ON SC)*, the Court held that the test of good faith is genuine intention to occupy the premises and not the reasonableness of the Landlord's proposal. This principle was upheld in *Salter v. Beljinac 2001 CanLII 40231 (ON SCDC)*, where the Court held that the "good faith" requirement simply means that a sincere intends to occupy the rental unit. The Landlord may also have additional motives for selecting a particular rental unit, but this does not affect the good faith of the Landlord's notice."

14. In the more recent case of *Fava v. Harrison, [2014] O.J No. 2678 ONSC 3352* (Ont.Div.Ct.) the Court determined that while the motives of the Landlord are, per Salter, "largely irrelevant", the Board can consider the conduct and motives of the Landlord to draw inferences as to whether the Landlord desires, in good faith to occupy the property."

15. Based on the evidence and submissions before the Board, I am satisfied on a balance of probabilities that the Landlord's child genuinely intends to move into the rental unit and live there for at least one year. Therefore, the Landlord in good faith requires possession of the rental unit for a period of at least one year.

16. The evidence of the Landlord's child with respect to their intended use for the unit was consistent and credible throughout the proceedings.

17. I also find that there was insufficient evidence before the Board to suggest that the Landlord has other intentions for the rental unit. Although there was no dispute between that there were previous discussions about the Landlord's daughter intending to occupy the rental unit, these discussions took place three years prior to this current proceeding being commenced. I accept the Landlord's testimony that his children's circumstances changed throughout the years.

Relief from eviction:

18. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to postpone the eviction until March 15, 2026 pursuant to subsection 83(1)(b) of the Act.

19. The Tenant has resided in the rental unit for approximately 21 years and resides in the unit with her adult child. The Tenant stated that she has been actively searching for and applying to new rental units but has been unsuccessful in obtaining new housing due to

increased market rent. The Tenant has also incurred funeral expenses due to mother passing away in the summer of 2025.

20. The Tenant emphasized at the hearing that she would require additional time to vacate the rental unit. The Landlord did not oppose a 2–3-month delay in termination given the length of the tenancy and the Tenant’s circumstances.
21. Based on the evidence and submissions before the Board, I find that a delay in termination to March 15, 2026, would be appropriate to afford the Tenant additional time to secure alternate housing. I find that delaying beyond this date would be unfair to the Landlord as the N12 notice was served over a year ago and that the Tenant has had substantial time to look for alternate living accommodations.
22. This Order contains all the reasons for this matter. No further reasons will issue.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated. The Tenant must move out of the rental unit on or before March 15, 2026.
2. If the unit is not vacated on or before March 15, 2026, then starting March 16, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
3. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after March 16, 2026.

December 18, 2025

Date Issued

Fabio Quattrociochi

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenant expires on September 16, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.